

IN THE COUNTY COURT MONEY CLAIMS CENTRE

CLAIM NO: J33YX265

BETWEEN

MR PAUL KAVANAGH

CLAIMANT

AND

MS NICOLA HUNT

DEFENDANT

DEFENCE

Pursuant to CPR 26 PD 12.4 this is a case that will last longer than 30 minutes and that will require the Court to hear oral evidence from the Claimant. Accordingly, it is not suited to being dealt with at a Disposal Hearing.

1. It is admitted that on 28/11/2021 a road traffic accident occurred on Cleveland Square, Liverpool between;
 - a. MC16 WCW, the 'Claimant's vehicle';
 - b. DE17 WMZ, the 'Defendant's vehicle'.
2. For the purpose of these proceedings only, the Defendant admits liability for the accident, however disputes quantum.
3. No admission is made regarding the Claimant's ownership of the Claimant's vehicle and, accordingly, the Claimant is put to strict proof that they were the registered keeper of the 'Claimant's Vehicle'.

Premature issue

4. The Defendant will aver that the Claimant has commenced proceedings prematurely by failing to provide the Defendant with details and evidence in relation to the Claimant's claim before the commencement of Proceedings. Had the Claimant done so, the parties could have engaged in settlement discussions and agreed a settlement without the need to commence Part 7 Proceedings.
5. Prior to the issuing of proceedings the Defendant requested copies of the documents in support of the Claimant's repairs in particular documentary evidence, including but

not limited to full costs of individual part prices but has not been provided with the same. The Defendant has also not been provided with any documentation in respect of their claim for Hire or Storage.

6. The Defendant avers that the Claimant has failed in their duty to adhere to the Pre-Action Conduct Protocol and refers to the Practice Direction paragraphs 3(c) and 6(c) in that the Claimant has failed to disclose sufficient information prior to the issuing of proceedings to enable the Defendant and their representatives to understand the issues.
7. Further, the Defendant notes that limitation in this matter is 27 November 2027 and as such there was no apparent urgency or need for the Claimant to issue proceedings.
8. The Defendant reserves the right to refer this to the court on the issue of costs
9. In view of the matters raised in paragraphs 4-8 of this Defence the Defendant disputes the Claimant's entitlement to costs.

COUNTER SCHEDULE OF LOSS

10. Insofar as the Claimant has submitted claims for the following heads of Special Damages, the Defendant will aver as follows:
 - a. Without prejudice to the aforesaid and notwithstanding the pleadings below, the Claimant is put to strict proof that all losses (which are not admitted) claimed now or in the future were:
 - i. Incurred as a direct result of the collision;
 - ii. Foreseeable;
 - iii. Incurred in such sum as claimed or at all;
 - iv. Incurred by the Claimant directly or remain the liability of the Claimant and;
 - v. Incurred following all reasonable steps to mitigate his losses.

Credit for interim

11. The Defendant refers to an interim payment of £3,000.00 to TDP Solicitors on or around 26 April 2022 made towards the claim generally and requests credit for the same.

12. The Defendant will require reimbursement if the Claimant is awarded less than the payment made at final hearing.

Vehicle Repair - £2,858.04 – Disputed

13. The Claimant has provided an engineer report with no breakdown of the costs. The Claimant is put to strict proof by way of documentary evidence, including but not limited to full engineer report including repairs, labour rate and individual part prices.
14. The Claimant is put to strict proof that the damage claimed is directly linked to the index accident.
15. The Claimant is put to proof that the repairs invoiced at submitted at £2,858.04 is an appropriate sum in regard to the measure of loss in relation to the Claimant's vehicle.
16. The Defendant will assert that the labour rates of £53.50 per hour plus vat is excessive and the Claimant has failed to mitigate her loss and is entitled to recover basic local labour rates only. The Defendant will adduce evidence of reasonable local basic repair rates to establish the level of reduction to be applied by way of a local repair rate report.
17. The Defendant reserves the right on receipt of evidence of the costs of each part that it may be excessive and the Claimant has failed to mitigate his loss and is entitled to recover basic standard costs of parts only. The Defendant will adduce evidence of reasonable cost of parts to establish the level of reduction to be applied (if any) by way of an engineer's report

Storage - £2,232.00 (and ongoing) – Disputed

18. The Defendant has not been provided with any documentary evidence in support of this alleged head of loss and therefore makes no admissions to the same for want of knowledge. As such, the Claimant is now required to provide full particularisation and complete documentary disclosure in respect of this alleged head of loss and put to strict proof of the same. For the avoidance of doubt, it is the Defendant's position that it is for the Claimant to prove their claim and that on the evidence presented, the Claimant has patently failed to discharge the burden of proof upon them. As such and failing full disclosure of all documentation to support this alleged head of loss, the Defendant will say that this head of loss is unrecoverable.

19. The Claimant is put to strict proof that there was a real need for storage at a daily rate of £30.00 plus VAT.

20. The Defendant will assert that the storage rates of £30.00 plus vat per day is excessive and the Claimant has failed to mitigate his loss. The Defendant avers that the vehicle was roadworthy in accordance with the engineers report of Stephenson's Consulting Engineers (Forensic) Ltd dated 13 December 2021 [Annex 1] and therefore does not require storage and could have been stored on the client's drive or on the road outside his house [Annex 2] and/or be used.

Credit hire - £18,600.00 (ongoing) – Disputed

21. The Defendant has not been provided with any documentary evidence in support of this alleged head of loss and therefore makes no admissions to the same for want of knowledge. As such, the Claimant is now required to provide full particularisation and complete documentary disclosure in respect of this alleged head of loss and put to strict proof of the same. For the avoidance of doubt, it is the Defendant's position that it is for the Claimant to prove their claim and that on the evidence presented, the Claimant has patently failed to discharge the burden of proof upon them. As such and failing full disclosure of all documentation to support this alleged head of loss, the Defendant will say that this head of loss is unrecoverable.

22. The details of hire are unsubstantiated and the Claimant is put to strict proof

23. The basis of the dispute and the Defendant's case is set out in the paragraphs below.

24. The Claimant is put to proof that they were appropriately and legally driving vehicle MC16 WCW. The Claimant is required to disclose the following:

- a. MOT certificate for the Claimant's vehicle covering the accident date;
- b. Insurance documents for the Claimant's vehicle covering the accident date;
- c. V5 for the Claimant's vehicle covering the accident date.
- d. A copy of the Claimant's Full UK Driving License.

25. Should the Claimant fail to provide a valid MOT certificate, the Defendant will contend that the Claimant was not using his vehicle within the constraints of the law, did not have a valid loss of use and is not entitled to recover credit hire charges against the Defendant.

Enforceability

26. The Claimant has failed to furnish the Defendant with a copy of the Payment Pack therefore the Claimant has failed to prove that the Claimant is legally liable to pay the credit hire charges.
27. The Claimant is put to strict proof that he is legally liable for the credit hire charges, whether as claimed or indeed at all. In the event that the Claimant has no liability for the charges purportedly incurred, then he has no recoverable loss to pursue.
28. The Claimant is required to disclose all contractual documents relating to the hire charges, including any and all agreement signed by the Claimant, and is put to strict proof that each comply with;
- a. The Consumer Credit Act 1974, or the Consumer Credit (Exempt Agreement) Order 1989;
 - b. The Cancellation of Contracts made in Consumer's Home or Place of Work et. Regulations 2008, where agreements are entered into before 13 June 2014;
 - c. The Consumer Contracts (Information Cancellation and Additional Charges) Regulations 2013, where agreements are entered into on or after 13 June 2014.
29. The Claimant is put to strict proof that the hire agreement is enforceable and particularly, but not limited to, that:
- a. The Hire Company is authorised by the Financial Conduct Authority to provide Credit Hire.
 - b. The Credit Hire Company and/or Agreement complies with the Financial Services and Markets Act 2000

Need

30. The Claimant is put to strict proof as to his need for a replacement vehicle and, if established, his need to replace such a vehicle by means of hire given that neither is self-proving, in accordance with ***Giles v Thompson*** (1994) 1 AC 142.

31. The Claimant is required to prove how he travelled from one place to another between the date of collision and the date before he received the replacement vehicle;
32. The Claimant is required to prove the make(s), model(s), and registration(s) of each and every vehicle registered at his address, whether or not available for use during the period of hire.
33. The Claimant is required to prove he was not entitled to procure a replacement vehicle under the terms of any lease agreement made in respect of the Claimant Vehicle.
34. The Defendant avers that the vehicle was roadworthy in accordance with the engineers report of Stephenson's Consulting Engineers (Forensic) Ltd dated 13 December 2021 [Annex 1] and therefore does not require Credit Hire.
35. The Defendant avers that the Damage to the Claimant vehicle would not have prevented the vehicle been used as a Taxi. The Defendant will adduce evidence of reasonable by way of a report or witness statement
36. The Defendant denies that the Claimant had any need to hire a substitute vehicle. The need to hire is not self-evident or self-proving and the Claimant is put to strict proof. The burden of proving need rest with the Claimant and if the Claimant had access to no-cost alternative vehicle and/or did not need a replacement vehicle he ought reasonably to have made use of such option.

Period

37. The Claimant has failed to furnish the Defendant with a copy of the Payment Pack. The Claimant is put to strict proof of the hire start date.
38. As per the Particulars of Claim, the hire started on 10/12/2021 and it is ongoing. The vehicle to date has been hired for a total period of 134 days. The Claimant to put to strict proof that the period claimed and the Claimant continuing to remain in hire is reasonable.
39. The Defendant avers that the Claimant was offered repairs by the Defendant's insurers on 29/11/2021 on intervention basis, however, the Claimant failed to utilise

the offer. Had the Claimant accepted the offer, the Claimant would not have needed to remain in hire till date.

40. It is alleged that the Claimant failed to replace the Claimant Vehicle in a timely manner, whether by utilising savings, credit cards, or loans (be they commercial or personal) and instead continued in hire whilst charges were mounting.

41. It is asserted that the significant delay was caused due to the Claimant's own negligence.

42. It is asserted that the Claimant has failed to mitigate his loss as a direct result of his agent(s) causing delay (whether innocently, negligently, carelessly or deliberately) and thereby extending the period of hire beyond that reasonably required.

43. In all circumstances, recovery should be limited accordingly.

Intervention

44. It is asserted that the Defendant's insurer made a valid intervention offer to the Claimant on 29/11/2021 and sent it to the Claimant's insurer, Equity Red Star as the Defendant's insurer did not have the Claimant's home address [Exhibit 3].

45. The offer was made to the Claimant to provide the Claimant with a 'free replacement' vehicle with immediate effect. The Defendant would have paid a daily rate of £22.35 for the like for like vehicle.

46. The Defendant will aver the Claimant failed to take advantage of the offer of a vehicle from the Defendant's insurer pursuant to *Copley –v- Lawn and William Powell v Babu Palani*.. The Claimant has therefore failed to mitigate his losses. The Claimant has failed to respond to the Defendant's valid intervention offer and instead opted to remain in hire incurring credit hire charges.

Rate

47. The Claimant has failed to furnish the Defendant with a copy of the Payment Pack therefore the Defendant cannot comment on the rate claimed or the vehicle hire.

48. It is noted that the Claimant's own vehicle was a Ford Mondeo with the vehicle registration MC16 WCW. The Claimant has failed to confirm the vehicle registration, make and model of the vehicle hired.
49. The Claimant has failed to confirm who the credit hire provider is in their Particulars of Claim.
50. The Claimant has failed to confirm if there are any extra charges included in the hire, i.e. Collision damage waiver, automatic, additional drivers, delivery and collection.
51. The Claimant has failed to provide documentary evidence for the daily rate claimed in the sum of £250.00 plus VAT.
52. The Defendant notes that the claimed value of vehicle damage is £2,858.04 as compared to the
53. It is asserted that the Claimant should be limited to recovering no more than the basic hire rate, in accordance with ***Dimond v Lovell*** [2002] 1 AC 384 and ***Bent v Highways & Utilities Construction Ltd*** [2010] EWCA Civ 292, on the basis he elected to hire on credit terms, which contained additional and irrecoverable benefits including (but not limited to):
- a. A credit facility in respect of hire charges;
 - b. Claims management services;
 - c. Legal services, which may or may not have included the appointment of representation.
54. Further, it is asserted that the hire charges purportedly incurred by the Claimant were wholly disproportionate to the value of the Claimant's vehicle.

Impecuniosity

55. As the Claimant alleges he was impecunious, and entitled to recover up to the full hire rate claimed, the Claimant is put to strict proof and required to disclose each and every method of funding available by means of statement(s) of account from every bank, building society and credit card provider (whether such accounts are held solely or jointly) and covering a 3 month period before the Hire commenced and up to date the hire ended.

56. If the Claimant is self-employed, the Claimant is required to disclose each and every method of funding available by means of statement(s) of account from every bank, building society and credit card provider (whether such accounts are held solely or jointly) and provide evidence of earnings by way of providing annual tax returns, profit and loss statements, income and expenses worksheet covering a 3 month period before the Hire commenced and up to date the hire ended..

57. Where the Claimant has failed to fully particularise and/or disclose details, the Defendant asserts that he should be debarred from relying upon the same.

Mitigation

58. The Claimant is put to proof that regarding the use of the hire vehicle for profit it would not have been appropriate to submit losses as a loss of profit sum as opposed to hiring a private hire vehicle.

59. The Defendant avers that incurring a daily rate of £250.00 per day therefore did not comply with mitigation of loss and that therefore the Claimant should be limited to an award of his daily average earnings.

60. The Defendant also pleads that the Claimant is only entitled to claim for loss of profit as vehicle used in the course of the Claimant's taxi hire business. The Defendant will seek to rely upon the case of *Zaker Ali v Spirit Motor Transport Limited*.

61. The Claimant is put to strict proof that if it is a Garage that has provided the Credit Storage and/or Credit Hire that the same Garage could not have provided Credit Repairs at a much lower costs instead. In addition if this is the case the Defendant will defer to the issue of third party costs orders.

62. The Claimant is put to strict proof that he ought reasonably to have made obtained other methods (i.e. a loan) to repair his vehicle.

Recoverability

63. The Claimant has failed to fully particularise facts relating to mitigation of loss or damage notwithstanding CPR, PD 16, Paragraph 8.2(8), which requires such matters to be specifically set out in the particulars of claim if relied upon.

64. For the avoidance of doubt, the issue to be determined in respect of the appropriate rate is the recoverability of *credit hire* charges.
65. In all circumstances, it is asserted that the Claimant must be limited to recovering no more than the basic hire rate.
66. The Defendant will contend that the Claimant has generally failed to mitigate his loss. The particulars of this contention are that the Claimant:
- a. Failed to make any or any attempts to make arrangements to use resources to find alternate vehicles at no cost;
 - b. Failed to make any or any attempts to make enquires or arrangements to hire a replacement vehicle from a local hirer at a reasonable rate;
 - c. Allowed the hire and storage to go on unnecessary when his vehicle was roadworthy
 - d. Failed to take advantage of the offer of a vehicle from the insurer of vehicle pursuant to *Copley –v- Lawn*.

Extras

67. The Claimant is put to proof in incurring any charges, that no cheaper methods where available, and that this complied with his duty to mitigate loss.

Additional policy's/waivers

68. The Claimant is put to strict proof as to why he did not transfer across his own policy of insurance to cover the replacement vehicle provided by the Credit Hire provider in order to mitigate his loss and whether the liabilities could have been covered by an insurance product aside from his own insurance or a waiver.

INTEREST

69. The award of interest is a matter for the court exercising its discretion under Section 69 of the County Court Acts 1984.
70. In regard to damages based on credit the Claimant has incurred no loss for which the interest can reasonably be expected to accrue and the Defendants will refer to the Judgment in *Vasant Pattni v First Leicester Buses Limited* [2011] EWCA Civ 1384;

71. Accordingly, no admissions are made regarding the Claimant's interest and they are put to strict proof as to the sum(s), rate(s) and period(s) claimed on each and any part of damages that may be awarded.

72. For the avoidance of doubt the Claimant is requested by the Defendant to attend the hearing.

73. No admissions are made regarding the Claimant's statement of value.

74. In the event the Claimant fails to provide a Reply to Defence enclosing evidence in support of the claim the Defendant requests the Court strikes out the Claim.

STATEMENT OF TRUTH

Signed

(To be signed by you or by your solicitor or litigation friend)

The Defendant believes that the facts stated in this Defence are true. I am duly authorised by the Defendant to sign this statement. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth

A North

Alexandra North

Position or office held
(if signing on behalf of firm or company)

CLAIMS HANDLER

Date

11/05/2022

Give an

address to which notices about this case can be sent to you

OCL Solicitors

First Floor
Unit 1
Carolina Court
Doncaster
DN4 5RA

Ref: 161862.001/AK3

Tel. No. (0)1302 558 606

if applicable

fax no

DX no

e-mail

IN THE COUNTY COURT MONEY CLAIMS CENTRE

CLAIM NO: J33YX265

BETWEEN

MR PAUL KAVANAGH

CLAIMANT

AND

MS NICOLA HUNT

DEFENDANT

ANNEX 1



Stephensons

Consulting Engineers (Forensics) Ltd

Queens Court Business Centre - Newport Road - Middlesbrough - TS1 5EH

Tel: +44 7813 825818
instructions@stephensons-uk.com

FAO The Court
C/O The Dures Partnership
21 Cheapside,
Liverpool,
L2 2DY

Your Ref: AB/SM/126893
Our Ref: 2490.21
Client Name: Mr Paul Kavanagh
Date: 13 Dec 2021

Dear Sirs,

In accordance with your instructions received in this office on 30 Nov 2021, we made arrangements to examine your client's vehicle on 02/12/2021 at Berry Street Garage, Berry Street, L20. The following data was recorded:

Vehicle

Make:	Ford	VRN:	MC16WCW
Model:	Mondeo Titanium Econetic Tdci	Fuel:	Diesel
Colour:	Grey	Tax Expiry:	Current
Mileage:	47118	Date of Registration:	29 July 2016
Brakes:	Not checked	Steering:	Not checked
Engine CC:	1499	Pre-Accident Value:	£ 7500
VIN:	WF0EXXWPCEGK51241	Retail Guide:	Glass's Guide/Autotrader/Periodicals
Doors:	5	Pre-Accident Condition:	Clean
Extras:	Taxi	Salvage Value:	£ 0

Vehicle Condition

OSF	7.0mm	NSF	6.6mm
OSR	3.0mm	NSR	3.0mm

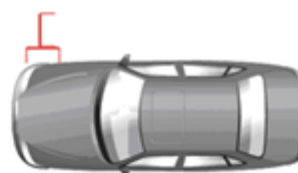
Impact Direction & Severity Moderate to offside front

RW/URW: Roadworthy

Total Loss: No

Repairable: Yes

Category: None



Repair Estimate

New Parts

Front Bumper Lining
Front Bumper Outer Bracket
Front Bumper Inner Bracket
Front Bumper Repair kit
Front Bumper Lining Clip
Front Bumper Lining Screw
Front Bumper Lining Nut
Headlamp, Complete (with Indicator)
Front Wing
Front Wing Repair Kit
Front Wing Insulation
Front Wing Weatherstrip Seal
Front Wing Liner
Front Wing Panel Screw

Repairs

Blend

Additional Operations

4 Wheel Alignment £140
Waste £15
Valet £60
Methods Manual £40

Recovery & Storage Charges

Repair Costs

Labour Hours: 11 hours

Hourly Rate:	£ 53.5
Total Labour:	£ 588.5
Parts:	£ 1068.94
Paint/Materials:	£ 469.26
Specialist:	£ 255
Sub-Total:	£ 2381.7
VAT (20%):	£ 476.34
Total:	£ 2858.04

Notes

Numerous further images available.

Further damage may be found once dismantled.

Glass's Repair Estimate prepared.

Mileage Information Last MOT Mileage 45,594 miles Avg. Annual Mileage 8,600 miles Mileage Last Year 15,952 miles Mileage Issues Yes Mileage Issues Summary The odometer reading reduced by 98,897 miles between 08/07/2020 and 10/12/2020.

HPI Check Results - 03/12/2021 15:18:08 GREY FORD MONDEO TITANIUM ECONETIC. Make FORD Year of Manufacture 2016 Model MONDEO TITANIUM ECONETIC Number of Former Keepers 1 Engine Size 1499cc Start Date of Current Keeper 09/12/2020 No HPI issues.

This report was compiled by:

Stephenson Consulting Engineers whose office address is Queens Court, Harris Street, Middlesbrough, TS1 5EH.

I understand my duty to the court and have complied with that duty. I am aware of the requirements of CPR Part 35, this practice direction and the Protocol for Instructions of Experts to give evidence in civil claims.

I confirm that I have made clear which facts and matters referred to in this report, insofar as the facts stated in my report, are within my own knowledge and which are not. Those that are within my own knowledge I confirm to be true. The opinions I have expressed represent my true and complete professional opinions on the matters to which they refer."

We enclose our fee note for your kind attention, which remains payable irrespective of the outcome of this case.

The vehicle can be returned to use if repaired to a safe and legal standard

We trust this meets with your requirements but should you have any further queries, please do not hesitate to contact us.

Kind Regards,



John Stephenson, CAE MIMI T.Eng
13 Dec 2021

IN THE COUNTY COURT MONEY CLAIMS CENTRE

CLAIM NO: J33YX265

BETWEEN

MR PAUL KAVANAGH

CLAIMANT

AND

MS NICOLA HUNT

DEFENDANT

ANNEX 2



IN THE COUNTY COURT MONEY CLAIMS CENTRE

CLAIM NO: J33YX265

BETWEEN

MR PAUL KAVANAGH

CLAIMANT

AND

MS NICOLA HUNT

DEFENDANT

ANNEX 3



Unit 1
Carolina Court
Doncaster
South Yorkshire
DN4 5RA

T 0871 423 5000

Equity Red Star
PO Box 3753
Wooten Bassett

SN5 4DA

Date: 29/11/2021
Our Ref: FAC6/91101054498/01
Your Ref:

Dear Sirs

Our Client: Ms Nicola Hunt
Our Clients Registration: DE17WMZ
Your Insured: Paul Kavanagh
Your registration: MC16 WCW
Incident Date: 28/11/2021

Please find enclosed a letter addressed to your insured.

In the absence of an address we would be grateful if you could forward this to your insured on our behalf. We would ask that you recommend to your client that they accept our services as any refusal may be seen as failure to mitigate their losses.

We look forward to receiving your response confirming your interest in this matter.

Yours Sincerely,

William Brinkley-Wilson
One Call Claims Limited



Unit 1
Carolina Court
Doncaster
South Yorkshire
DN4 5RA

T 0203 738 7300

Paul Kavanagh

Date: 29/11/2021
Our Ref: FAC6/91101054498/01
Recorded Delivery

Dear Paul Kavanagh

Our Client : Ms Nicola Hunt
Incident Date : 28/11/2021
Your Vehicle : MC16 WCW

We are sorry to hear that you have been involved in an incident with our client on the above date, and we would like to take this opportunity to ease any inconvenience caused by taking care of everything for you, as it does appear that our driver was at fault for the incident. One Call Claims have been instructed by One Insurance Limited, to deal with the claim in its entirety and we are sending this letter on behalf of them and the defendant driver.

At One Call Claims we pride ourselves on our excellent customer service and our efficient claims handling process and we are extending the following services to you free of charge:

Benefits of dealing with us directly:

- 1. Dedicated file Handler** who will deal with your case from start to finish so you will not be passed from person to person throughout the process.
- 2. Free delivery and collection of your vehicle.**
- 3. Your vehicle repairs** They will be provided through our nationwide approved network, and this will be at no cost to you as we will pay £27.50 per hour for labour and any other costs detailed on the estimate/engineers report. You will also receive a full 3-year parts and labour guarantee on any repair work.
- 4. Replacement vehicle** Your vehicle is a FORD MONDEO which is in the **S5** group of vehicle. We will provide you with a replacement vehicle from this category or an equivalent. This will be at no cost to you as we will pay **£22.35** per day for this vehicle which will include insurance charges and a £0 excess if needed.
- 5. This claim will not affect your no Claims discount.**
- 6. You will have no excess to pay.**
- 7. There will be no forms to complete.**

It's a common procedure in motor claims where the other side will offer to deal with your claim directly. This is not an attempt to jeopardise any services you receive, but only to assist you in your common law duty to keep costs to a minimum. *(This means acting as though you are not insured, for example, if company A was providing a vehicle for £50.00 and company B was providing the same vehicle for £25.00 which would you choose if you were paying for this yourself?)*

If your vehicle is currently not driveable, we can provide a replacement vehicle within four working hours of contact. We also give you the option of using three different types of Hire Company which are Enterprise Rent-A-Car, Hertz Vehicle Rentals and One Call Claims.

Provided your vehicle is economical to repair, we will provide you with the vehicle for the period that your car is off the road. If your



Unit 1
Carolina Court
Doncaster
South Yorkshire
DN4 5RA

T 0203 738 7300

vehicle is considered to be beyond economical repair, we will provide you with a vehicle for the period it takes to send you an interim payment or full payment representing the pre-accident value of your vehicle.

If you take up the offer, we will ask the hire company to contact you and they will explain the terms of the hire. Depending on the make and model of the hire car you may be asked to make a deposit. However, if this causes you any difficulty or you have a query about this; do not hesitate to contact us.

If you have already been supplied with a replacement vehicle, we would advise you to contact your representatives immediately to inform them of this offer.

If your vehicle is already off the road and you are driving a replacement vehicle, please check the agreement you have signed. Unless the replacement provided is a free courtesy vehicle, we would like to substitute this vehicle with a vehicle supplied by us, at no cost to you.

Should you elect not to accept the offer of our services but instead utilise credit repair and/or credit hire facilities from another source, then we will limit the payment of any such claim made on your behalf to the value it would cost us to supply a replacement vehicle as stated above. The hire company would have to seek the balance from yourself or your insurance company which may affect your insurance renewal.

In cases where you are already in hire, we will only pay for a maximum of three days following our offer to replace the hire.

If the Public Carriage Office licenses your vehicle, we encourage you to not hire a replacement vehicle at a cost greater than your daily earnings. It may be more economical to not work whilst your vehicle is off the road, rather than hire a vehicle at a daily loss. In order to prevent you from incurring ongoing loss of earnings, we may be able to issue an interim payment in respect of your earnings as a substitute for a replacement vehicle.

We reserve the right to bring this letter to the attention of the court in any subsequent action brought against our client or us. If you do not agree with the contents of this letter please consult an independent legal advisor or your credit hire company, to discuss the matter further.

We appreciate that there is a lot of information contained in this letter. We would be more than happy to discuss the matter with you to explain what we can offer. Should you have any queries relating to this matter, please do not hesitate to contact us on 01302 554011.

Alternatively if you wish you can now contact us via our Live Chat service between the hours of 9:00AM and 5:30PM Monday to Friday. This can be accessed by visiting One Call Claim's website www.onecallclaims.co.uk

Yours sincerely,

William Brinkley-Wilson
One Call Claims Limited